



ARIZONA HOUSE OF REPRESENTATIVES FLOOR AMENDMENT EXPLANATION

57th Legislature, 2nd Regular Session

Majority Research Staff

HB 2270: county seal; authority; sheriff's posse

MARSHALL FLOOR AMENDMENT

1. Adds language clarifying that a person must obtain a certificate of approval from the board of supervisors to use any county emblem, and from the elected official in control of a county office to use that office's emblem.
2. Specifies a person must obtain approval for the use of a county emblem or county office emblem that *implies affiliation* with the county or that county office.
3. Allows a person to use a county emblem or county office emblem to engage in satire or parody without obtaining approval from the board of supervisors or the elected official in control of that county office.

MARSHALL FLOOR AMENDMENT
HOUSE OF REPRESENTATIVES AMENDMENTS TO H.B. 2270
(Reference to printed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

~~[GREEN STRIKEOUT IN BRACKETS]~~ indicates new text removed from statute or previously enacted session law.

~~[Green strikeout in brackets]~~ indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

~~<<Green strikeout in carets>>~~ indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Section 11-251.17, Arizona Revised Statutes, is amended
3 to read:

4 11-251.17. Use of county seal, logo or insignia restricted:
5 county offices; cease and desist order;
6 violation; classification; exception

7 A. A person may use, display or otherwise employ any facsimile,
8 copy, likeness, imitation or other resemblance of the county seal, LOGO OR
9 INSIGNIA OR ANOTHER VISUAL OR TEXTUAL IDENTIFIER OF [★] [THE] COUNTY
10 [OFFICE], WHETHER IDENTICAL OR SUBSTANTIALLY SIMILAR, THAT [COULD IMPLY]
11 [IMPLIES] AFFILIATION WITH [★] [THE] COUNTY [OFFICE] only after obtaining
12 the approval of the board of supervisors of that county [OR THE ELECTED
13 OFFICIAL IN CONTROL OF THE COUNTY OFFICE]. The board of supervisors [OR
14 THE ELECTED OFFICIAL IN CONTROL OF THE COUNTY OFFICE] may grant a
15 certificate of approval on application by any person showing good cause
16 for the use of the county seal, LOGO OR INSIGNIA OR ANOTHER VISUAL OR
17 TEXTUAL IDENTIFIER OF [★] [THE] COUNTY [OFFICE] for a proper purpose. No
18 person other than a county department may use the county seal ~~for the~~
19 ~~purpose of advertising or promoting~~, LOGO OR INSIGNIA OR ANOTHER VISUAL OR
20 TEXTUAL IDENTIFIER OF [★] [THE] COUNTY [OFFICE] TO ADVERTISE OR PROMOTE
21 the sale of any article of merchandise within this state or for promoting
22 any other commercial purpose. The board of supervisors may adopt rules
23 for the use of the county seal, LOGO OR INSIGNIA OR ANOTHER VISUAL OR
24 TEXTUAL IDENTIFIER OF [★] [THE] COUNTY [OFFICE] or any facsimile, copy,
25 likeness, imitation or other resemblance of the county seal, LOGO OR
26 INSIGNIA OR ANOTHER VISUAL OR TEXTUAL IDENTIFIER OF [★] [THE] COUNTY
27 [OFFICE], including rules for the use of the county seal, LOGO OR INSIGNIA

1 OR ANOTHER VISUAL OR TEXTUAL IDENTIFIER OF [★] [THE] COUNTY [OFFICE] for
2 official county business.

3 [B. A PERSON MAY USE, DISPLAY OR OTHERWISE EMPLOY ANY FACSIMILE,
4 COPY, LIKENESS, IMITATION OR OTHER RESEMBLANCE OF THE LOGO, INSIGNIA OR
5 ANOTHER VISUAL OR TEXTUAL IDENTIFIER OF A COUNTY OFFICE, WHETHER IDENTICAL
6 OR SUBSTANTIALLY SIMILAR, THAT IMPLIES AFFILIATION WITH THAT COUNTY OFFICE
7 ONLY AFTER OBTAINING THE APPROVAL OF THE ELECTED OFFICIAL IN CONTROL OF
8 THAT COUNTY OFFICE. THE ELECTED OFFICIAL IN CONTROL OF THE APPROPRIATE
9 COUNTY OFFICE MAY GRANT A CERTIFICATE OF APPROVAL ON APPLICATION BY ANY
10 PERSON SHOWING GOOD CAUSE FOR USING THE LOGO, INSIGNIA OR ANOTHER VISUAL
11 OR TEXTUAL IDENTIFIER OF THAT COUNTY OFFICE FOR A PROPER PURPOSE. A PERSON
12 OTHER THAN A COUNTY DEPARTMENT MAY NOT USE THE LOGO, INSIGNIA OR ANOTHER
13 VISUAL OR TEXTUAL IDENTIFIER OF A COUNTY ELECTED OFFICE TO ADVERTISE OR
14 PROMOTE THE SALE OF ANY ARTICLE OF MERCHANDISE WITHIN THIS STATE OR FOR
15 PROMOTING ANY OTHER COMMERCIAL PURPOSE. THE BOARD OF SUPERVISORS MAY ACT
16 TO ADOPT RULES FOR THE USE OF THE LOGO, INSIGNIA OR ANOTHER VISUAL OR
17 TEXTUAL IDENTIFIER FOR ANY COUNTY OFFICE OR ANY FACSIMILE, COPY, LIKENESS,
18 IMITATION OR OTHER RESEMBLANCE OF THE LOGO, INSIGNIA OR ANOTHER VISUAL OR
19 TEXTUAL IDENTIFIER OF ANY COUNTY OFFICE, INCLUDING RULES FOR THE USE OF
20 THE LOGO, INSIGNIA OR ANOTHER VISUAL OR TEXTUAL IDENTIFIER OF ANY COUNTY
21 OFFICE FOR OFFICIAL COUNTY BUSINESS. THE BOARD MAY ALSO ACT ON A REQUEST
22 OF A COUNTY ELECTED OFFICIAL FOR THE COUNTY OFFICE TO WHICH THE REQUESTING
23 COUNTY OFFICIAL IS ELECTED.]

24 [B.] [C.] If the county maintains a website, it shall display on
25 its website the adopted seal, LOGO OR INSIGNIA and the text of subsection
26 A of this section.

27 [C.] [D.] The board of supervisors shall issue a cease and desist
28 order to any person who is in violation of this section. If the person
29 fails to comply with the cease and desist order, the person is guilty of a
30 class 3 misdemeanor.

31 [E. SUBSECTIONS A AND B OF THIS SECTION DO NOT LIMIT THE ABILITY OF
32 A PERSON TO USE A COUNTY SEAL, LOGO OR INSIGNIA TO ENGAGE IN SATIRE OR
33 PARODY.]

34 Sec. 2. Section 11-441, Arizona Revised Statutes, is amended to
35 read:

36 11-441. Powers and duties

37 A. The sheriff shall:

38 1. Preserve the peace.

39 2. Arrest and take before the nearest magistrate for examination
40 all persons who attempt to commit or who have committed a public offense.

41 3. Prevent and suppress all affrays, breaches of the peace, riots
42 and insurrections that may come to the knowledge of the sheriff.

43 4. Attend all courts, except justice and municipal courts, when an
44 element of danger is anticipated and attendance is requested by the
45 presiding judge and obey lawful orders and directions issued by the judge.

1 5. Take charge of and keep the county jail, including a county jail
2 under the jurisdiction of a county jail district, and the prisoners in the
3 county jail.

4 6. Endorse on all process and notices the year, month, day, hour
5 and minute of reception and issue to the person delivering the process or
6 notice, on payment of fees, a certificate showing the names of the
7 parties, the title of the paper and the time of reception.

8 7. Serve process and notices in the manner prescribed by law and
9 certify under the sheriff's hand on the process or notices the manner and
10 time of service, or if the sheriff fails to make service, the reasons for
11 failure, and return them without delay. When returnable to another
12 county, the sheriff may enclose such process or notices in an envelope,
13 addressed to the officer from whom received, and deposit the envelope
14 postage prepaid in the post office. The return of the sheriff is prima
15 facie evidence of the facts stated in the return.

16 8. Secure, as soon as possible, the home of a deceased person
17 located outside the boundaries of an incorporated city or town if the
18 sheriff is unable to determine or locate the heirs or executor of the
19 deceased person.

20 B. The sheriff, in executing the duties prescribed in subsection A,
21 paragraphs 1 through 4 of this section, may command the aid of as many
22 inhabitants of the county as the sheriff deems necessary.

23 C. The sheriff shall conduct or coordinate within the county search
24 or rescue operations involving the life or health of any person or may
25 assist in such operations in another county at the request of that
26 county's sheriff. The sheriff may request assistance from any persons or
27 agencies in fulfilling duties under this subsection. A search and rescue
28 unit established or recognized by a county may possess human remains as
29 defined in section 36-301 for the purpose of training canines used for
30 search and rescue work. The sheriff or the sheriff's designee shall keep
31 an inventory of all human remains that are kept for the purpose of
32 training search and rescue canines. The inventory must be updated when
33 the search and rescue unit receives human remains or disposes of human
34 remains that are no longer useful to the search and rescue unit. Each
35 search and rescue unit that possesses human remains for the purpose of
36 training search and rescue canines shall establish policies and standard
37 operating procedures for access to, the inventory of and the possession
38 and disposal of human remains kept for the purpose of training search and
39 rescue canines.

40 D. The sheriff, in executing the duties prescribed in this section,
41 may request the aid of volunteer posse and reserve organizations located
42 in the county.

43 E. The sheriff may assist in executing the duties prescribed in
44 this section in another county at the request of that county's sheriff.

45 F. The sheriff may require any prisoner who is on work release to
46 reimburse the county for reasonable expenses incurred in connection with
47 the release.

1 G. The board of supervisors of a county bordering Mexico may adopt
2 an ordinance pursuant to chapter 2 of this title allowing the sheriff to
3 prevent the entry from this state into Mexico at the border by any
4 resident of this state who is under eighteen years of age if the minor is
5 unaccompanied by a parent or guardian or does not have written consent for
6 entry from the minor's parent or guardian. The authority of the sheriff
7 is only to prevent entry and not to otherwise detain the minor. This
8 subsection does not limit the authority of the sheriff pursuant to any
9 other law. A county is not civilly or criminally liable for not adopting
10 an ordinance pursuant to this subsection.

11 H. Notwithstanding section 13-3112, the sheriff may authorize
12 members of the sheriff's volunteer posse who have received and passed
13 firearms training that is approved by the Arizona peace officer standards
14 and training board to carry a deadly weapon without a permit while on
15 duty.

16 I. THE SHERIFF HAS THE EXCLUSIVE RIGHT TO NAME ANY POSSE THAT IS
17 ASSOCIATED WITH THE SHERIFF'S OFFICE AND TO DISSOLVE ANY POSSE THAT
18 OPERATES UNDER THE SHERIFF'S JURISDICTION.

19 Enroll and engross to conform
20 Amend title to conform

DAVID MARSHALL, SR.

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